



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Planner
Subject: UDC-21-00168 / The View – Preliminary Plat
Date: June 14, 2021

Background:

The item for consideration is a *Preliminary Plat*. This is approved by Acknowledgement.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 6/14/2021
- Public Services Committee 6/22/2021
- Final consideration 6/28/2021

Related Items:

- Park Estates, 4th Filing (5318 Braehill) Annexation (UDC-21-00129)
- Park Estates, 4th Filing (5318 Braehill) Zone Change (UDC-21-00131)

Planning Commission Recommendation:

The Planning Commission heard this item at their June 7, 2021 meeting and recommended the Governing Body approve this application subject to Staff's recommended conditions by a vote of 3-1.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Planning Commission Staff Report



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CITY OF CHEYENNE PLANNING COMMISSION

JUNE 7, 2021

STAFF REPORT

FILE: UDC-21-00168: The View Preliminary Plat

REQUEST: A Preliminary Plat of 1.3 acres proposing creating 9 lots

LOCATION: Southwest of the intersection of Parkhill, Braehill, and Panorama

APPLICANT: TL Provision, LLC

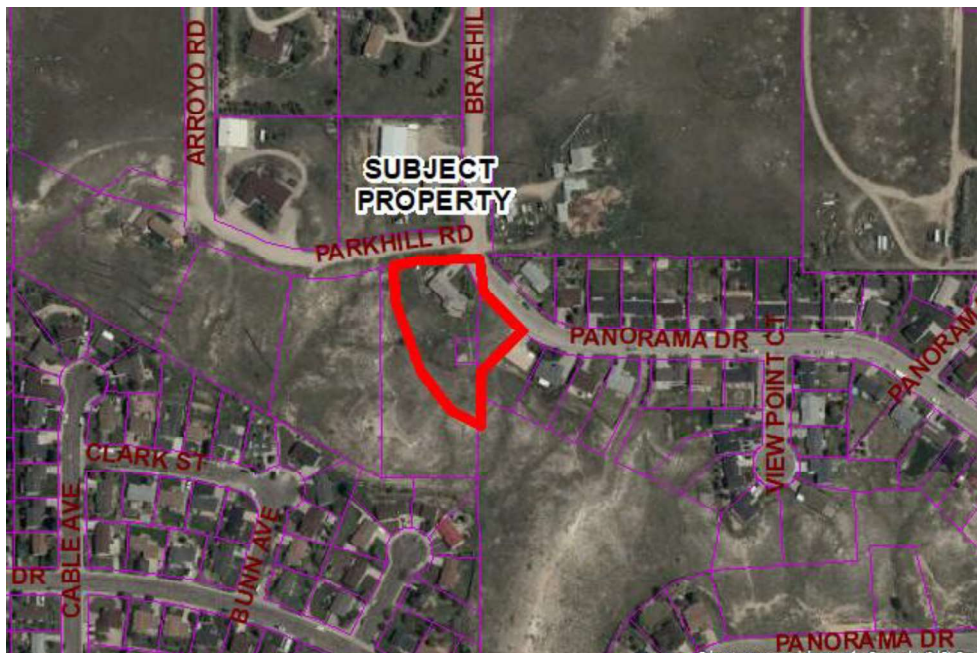
AGENT: AVI, PC

OWNER: Darold Stephen Melchior, Et Ux

ZONING: County AR Agricultural Residential

PURPOSE: A preliminary plat proposing 9 lots on a 1.3 acre tract of land for future residential development

PREPARED BY: Seth Lloyd, Planner



RECOMMENDED MOTION:

Move to recommend an exception for block size and **approve** the The View Preliminary Plat subject to staff's recommended conditions, noting that as conditioned, the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC Article 3 Impact Studies
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne
- East Dell Range Boulevard / US 30 Corridor Study
- Whitney Road Corridor Plan

BACKGROUND:

The applicant is requesting approval of a preliminary plat for a 1.3 acre tract of land to create 9 lots for future residential development. The County Assessor presently shows the tract of land as part of three ownership parcels. The land is currently developed with one rural-residential home.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County AR	Low-density Single-family Residential
North	Urban Residential	County AR	Low-density Single-family Residential
South	Urban Residential	County AR, MR	Single-family Residential
East	Urban Residential	MR	Single-family Residential
West	Urban Residential	County AR	Undeveloped

A majority of the property is currently zoned County AR Agricultural Residential, but has recently submitted an application to be annexed and zoned with the City zone of MR Medium-density Residential. The remainder of the property is currently within City limits and zoned MR Medium-density Residential.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the preliminary plat, the Commission must make the following findings required in UDC 2.1.2.d a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

On the future land use map found in PlanCheyenne, the subject land has been designated as Urban Residential and is within the Urban Service Boundary. Surrounding areas are also designated Urban Residential. The Urban Residential designation encourages a range of residential uses. The optimal City zoning is any of the residential zones, including the MR zone. The plat proposes meeting the MR zoning standards, which would be in conformance with the future land use map.

Foundation 1 of PlanCheyenne encourages community growth. This development is in response to market demands and is within the Urban Service Boundary. The development patterns proposed by this plat are compatible with the designations found on the future land use map.

Foundation 7 of PlanCheyenne support the use of existing infrastructure and timely provision of services (including emergency and education services). Developments on the edge of the community can create issues with providing services in an effective and timely fashion. Development of this area of the community creates the need to improve street and emergency service infrastructure. Staff recommends that preliminary plats expanding the response area include conditions for agreements with the City regarding impacts to Cheyenne Fire Rescue and the design and construction of roadway improvements.

Other principles of PlanCheyenne encourage tying neighborhoods together and a compatible development pattern between neighborhoods. Due to topographic constraints and previous development, the ability for the proposed subdivision to tie into the land to the north and east is limited. While the subdivision to the north is largely rural, the areas to the south and east are urban in nature and are zoned MR.

The application **complies** with this review criterion, with conditions.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The proposed plat is adjacent to an existing rural development to the north, and near existing urban residential development to the south and east. The plat proposes developing land near existing rights-of-way. Due to topography and previous development patterns, there is no real opportunity to tie into the neighborhood to the southwest.

There may be opportunity for properties to the north to redevelop into a more urban residential style, and utilities would need to be extended to such development. Some utilities already are extended northward. Extending sanitary sewer may assist redevelopment, but sanitary sewer may need to go a different direction due to this location being a topographic high point.

Lot 1 is proposed with very narrow gaps between duplex lots. These gaps are all less than 3' wide. While the structures would be setback 5' from the property line, making effectively an 11'-13' gap between buildings, fences may be built to the property line. A less-than-3' gap between fences would make the triangular-shaped western portions of Lot 1 difficult to access and maintain. Staff recommends that the western, triangular-shaped portions of Lot 1 be consolidated into the duplex lots.

The application **complies** with this review criterion, with conditions.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Transportation Network:

The transportation network in this area of the community is largely previously developed and is topographically constrained. There is limited opportunity for this plat to make any meaningful connections to the street network. The plat does not propose any dedication of right-of-way. The block this proposed plat is part of is too large by UDC standards, but due to topographic constraints and previous development, this block qualifies for an exception.

Community Facility Fees:

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. The required fees for the 0.7 acres of non-exempt land in this plat are as follows:

Land Acquisition Fee	\$245 (\$350 per acre)
Infrastructure Fee	\$245 (\$350 per acre)
Total Land Acquisition & Infrastructure Fees	\$490.00

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat. However, as this land was previously platted in the County after the adoption of the UDC, fees are due upon annexation. These required fees would be paid with the annexation instead of with this platting action.

Residential Enhancement Fee	\$400 per dwelling unit
Commercial Enhancement Fee	\$1,100 per acre
Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.	

Open Space:

Open space is required to be provided with this subdivision. For low-density residential development, open space is required at 750 square feet per dwelling unit or 8% of the gross plat area (whichever is less).

This plat proposes a large common lot which would likely be used for access, detention, and open space. While the area used for access should not count toward the open space requirement, the proposed lot is over 50% of the entire development and would likely still more than satisfy the open space requirement even with access areas subtracted out.

Required Improvements:

This proposed subdivision includes a layout to provide required utilities to the properties within this development; however, additional easements may be required.

The application **complies** with this review criterion, with an approved exception.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

There is no phasing proposed regarding the subdivision of the subject property.

The application **complies** with this review criterion.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

The applicant submitted a drainage worksheet, a drainage plan and a Transportation Worksheet with the initial submittal. No other studies were provided with the Preliminary Plat application. A revised Drainage Plan was submitted based on Staff comments.

Drainage:

The review of the revised drainage documents submitted with the preliminary plat identified issues with some of the calculations provided. A revision (or justification) is required. Concerns were also raised about the current and potential erosion of the hillside.

Traffic:

After review, the traffic analysis submitted with this application was deemed sufficient.

The application **complies** with this review criterion, with conditions.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

Lot 1 is proposed as an open space or access lot and is not proposed to be buildable. The remaining 8 lots are proposed as duplex lots in the MR zone. All 8 of these lots meet minimum area requirements, but 7 do not meet requirements for frontage at the front lot line. The minimum required frontage is 30' for a duplex in the MR zone. Most of the lots are shown with 27.64' of frontage at the front lot line. If the gaps created by Lot 1 were consolidated, these lots would be closer to the required minimum at the front lot line.

The UDC does allow lot frontage to be calculated at the front building line (typically the front setback line) instead of the front lot line (for cul-de-sacs or similar curved rights-of-way). If this allowance is applied to these lots, each lot would meet required frontage minimums.

Buildable lots are intended to front on public rights of way. The lots contained within this development do not front the public right-of-way, but instead front upon an open space / access parcel. However, there is nothing intervening between the right-of-way and the proposed duplex lots, so the duplex lot lines could be extended to the Panorama right-of-way, dissolving Lot 1 entirely, and instead creating an access/open space easement across the front 50'-100' of

each longer lot. Such a configuration would be able to more precisely meet the intent of code requirements, but may be more difficult for clarity of ownership and maintenance. The layout presented is more functional and substantively meets the frontage requirements. These are not 'flag' lots with only a few feet of frontage where homes are tucked behind a intervening row of houses.

The application **complies** with this review criterion.

7) All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)

Lot 1 is proposed to be owned by an undivided interest of the owners of the other 8 lots, and an HOA is proposed to maintain this unbuildable lot.

The application **complies** with this review criterion.

8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)

The land immediately adjacent to the north and northeast are dedicated rights-of-way. The land to the south and west has significant topographic change. The land to the east is developed with single-family homes. All of the surrounding land is designated Urban Residential by the future land use map in Plan Cheyenne, and surrounding existing zoning is AR in the County and MR in the City. The existing development patterns, zoning, and future land use designation all promote residential development.

While duplex-style development does not currently exist in the neighborhood, urban-scale residential does. The density allowed by the existing City zoning and the type of development anticipated by the future land use map designation imply that this style of proposed development is compatible with the neighborhood, although not identical to existing development patterns. Staff's analysis is that the proposal would not have an undue influence on surrounding property.

The application **complies** with this review criterion.

9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)

The area contained within this plat is part of a significant hillside. There is concern about the potential erosion of the hillside due to the development. Further documentation and analysis of the development's effect on the hillside is required to determine how to mitigate potential erosion.

Staff is satisfied this application would not otherwise unduly influence the public health, safety, and welfare.

The application **complies** with this review criterion, with conditions.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder lots are not proposed with this Preliminary Plat.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Lack of easements
2. The configuration of Lot 1 – specifically in relation to the narrow gaps
3. Public Safety Fees
4. Extension of BOPU facilities
5. Construction of public improvements
6. Drainage plan issues
7. Potential erosion issues
8. Block size (and exception)

CONCLUSION:

This application meets review criteria 3, 4, 6, 7, 8, and 10 (with an exception). Conditioning the Preliminary Plat may allow the plat to meet review criteria 1, 2, 5, and 9.

ALTERNATIVES:

1. Recommend approval of the preliminary plat as submitted by the applicant.
2. Recommend approval of the preliminary plat subject to staff's recommended conditions (**Staff Recommendation**).
3. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the plat does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the preliminary plat until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

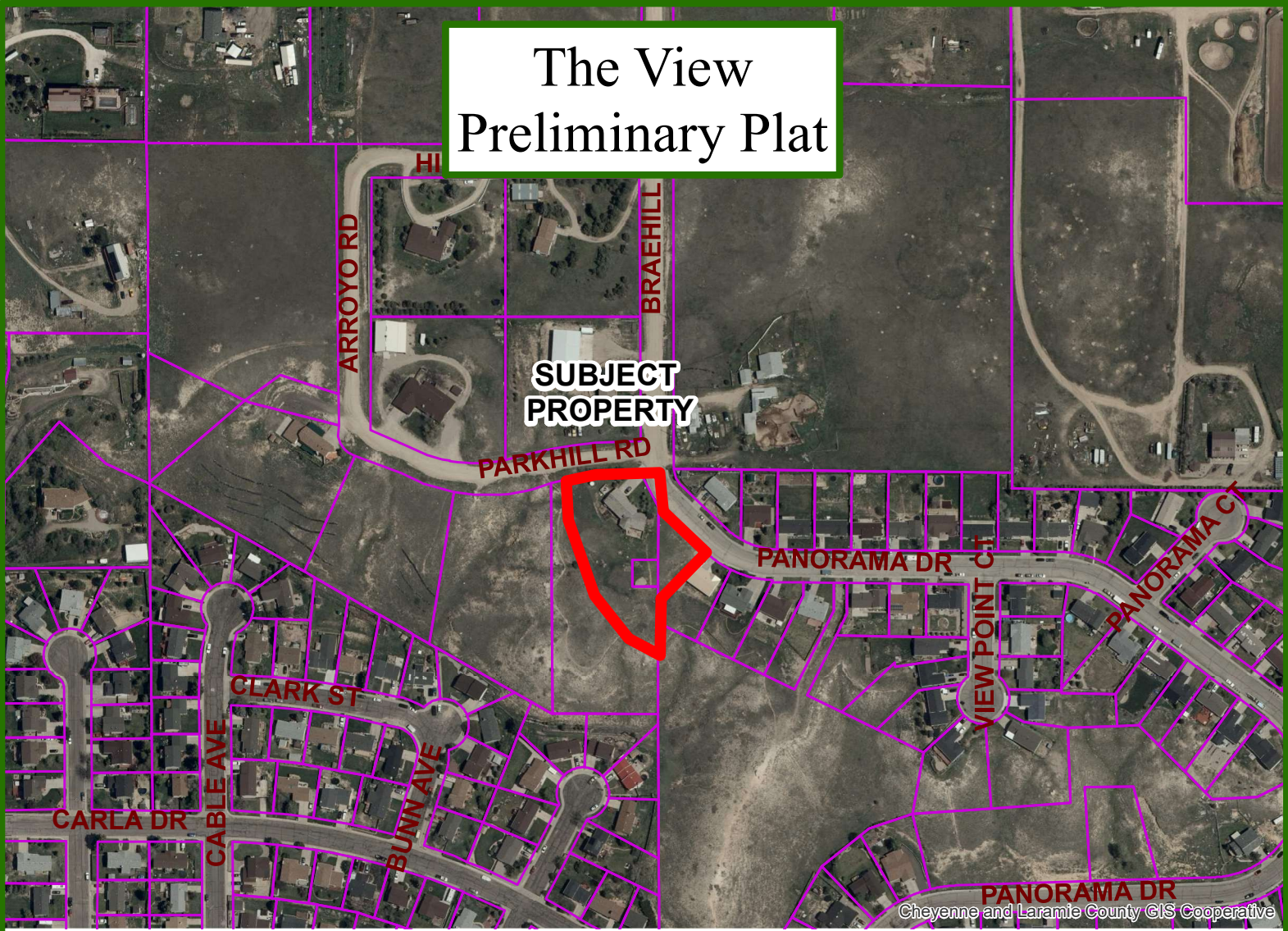
Staff recommends approval with the following conditions:

1. Concurrent with submittal of the final plat, the applicant shall:
 - a. Provide an updated drainage study, including hillside erosion mitigation (as necessary).
 - b. Revise the plat as follows:
 - i. Provide necessary easements.
 - ii. Make revisions (as necessary) to accommodate Lot 1 maintenance.
2. Prior to approval of the final plat the applicant shall:
 - a. Enter into a development agreement for public safety fees. Public safety fees shall be based on a January 2021 fee of \$756 per unit and shall be adjusted for inflation utilizing the construction cost index for twenty (20) cities, as issued by the current Engineering News Record to the date of final plat filing, and this condition shall be subject to modification by the Governing Body at the time of their consideration.
 - b. Enter into an agreement, satisfactory to the City, regarding improvements to Parkhill Road for the developer's proportionate share of required improvements.

ATTACHMENTS:

1. Aerial, Zoning, and Future Land Use Map
2. Submitted Master Application Form
3. Applicant-submitted plat

The View Preliminary Plat

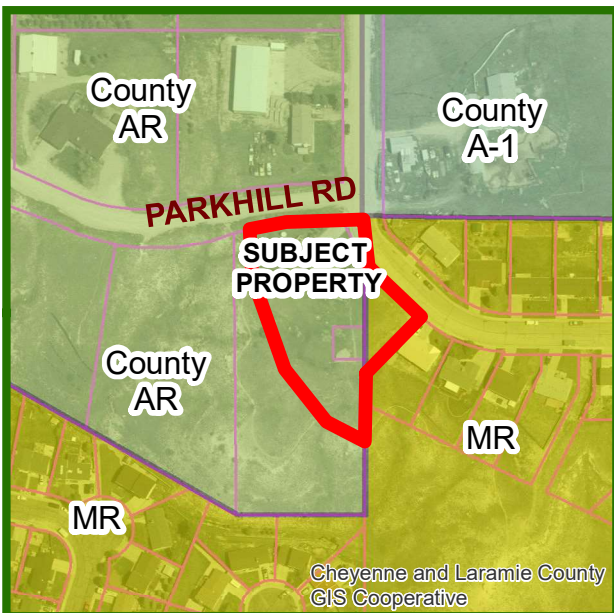


Application Number
Preliminary Plat
UDC-21-00132

Agent: AVI, PC
Owners: TL Provision LLC
Darold Stephen Melchior

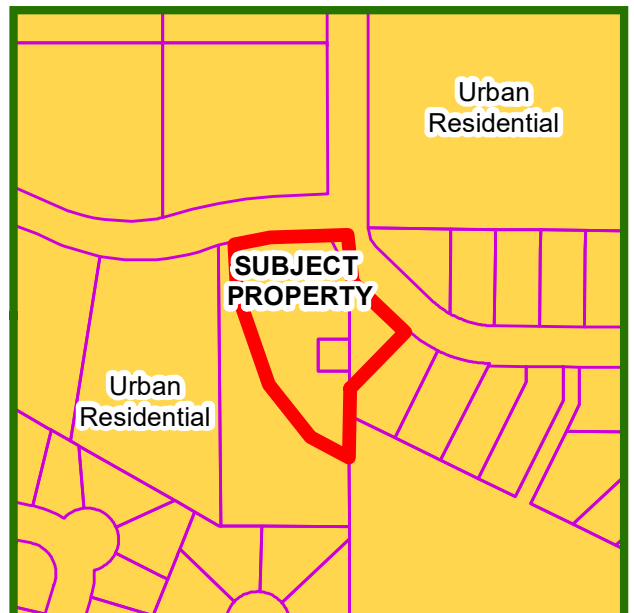
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Feet
Scale applies to above map only

Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Plat - Preliminary

Submission date: **21 April 2021, 5:18PM**

Receipt number: **4**

Related form version: **11**

General Information

Applicant Name: **TL Provision, LLC**

Applicant Address: **2010 Warren Ave**

Applicant City: **Cheyenne**

Applicant State: **Wyoming**

Applicant Zip Code: **82001**

Applicant Phone: **3076372323**

Applicant Email: **steve@melchlaw.com**

Representative Name: **AVI PC**

Representative Address: **1103 old town lane**

Representative City: **cheyenne**

Representative State: **wyoming**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **avi@avipc.com**

Owner Name: **TL Provision, LLC**

Owner Address: **2010 warren ave**

Owner City: **cheyenne**

Owner State:	wyoming
Owner Zip Code:	82001
Owner Phone:	3076372323
Owner Email:	steve@melchlaw.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	LOA signed 3-23-21.pdf
Project Location (Street Address or General Location):	5318 BRAEHILL RD CHEYENNE WY
Assessor's Parcel ID number(s)	
Total Project Area	1.3 AC
Existing Zoning	MR - Medium-density Residential

Application-Specific Information

Written Statement	This is a preliminary plat for The View Subdivision, being a replat of Tract 1 Park Estates 4th Filing and and Lot 20 Block 4 Park Estates. The proposed subdivision includes 4 duplexes/townhomes, totaling 8 residential units. Any easements added will be shown on the final plat.
Current Subdivision	The View Subdivision
Lots affected by this proposal	Tract 1 of Park Estates, 4th Filing and Lot 20, Block 4 of Park Estates.
A pre-application meeting is not required, but recommended. Please indicate the date the pre-application meeting was held.	2/3/2021
Upload any pre-application meeting notes or summaries relevant to this proposal.	PanoramaDuplexes210203.pdf
Are any easements proposed to be added, modified, or removed?	No

If easements are proposed to be added, modified, or removed. Attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.

Open Space Approach

Open space is deemed in Lot 1 on the preliminary plat, which will include green space, driveway, and parking area for use by lots 2-9. The open green space will be approximately 19,000 sqft of the project site, which provides open space for 33.5% of the total 1.3 acre project area and 2375 sqft for each residential unit. Therefore we are well over the required 8% open space or 750 sqft per unit.

Drainage Worksheet / Study

[drainage worksheet.pdf](#)
[4425 PRELIM DRAINAGE.pdf](#)

Transportation Worksheet / Study

[transportation worksheet.pdf](#)

Transportation Network Plan

Preliminary Plat Drawing

[prelim plat-.pdf](#)

Signature / Certification

Applicant Signature

Name of signatory: Connor Koch



[Link to signature](#)

Please enter an email address for an email receipt.

ckoch@avipc.com

LEGEND

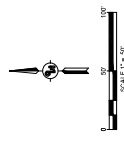
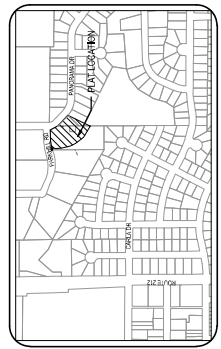
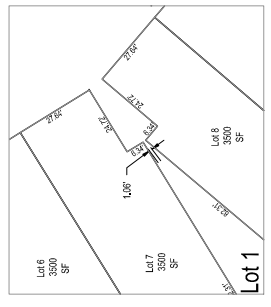
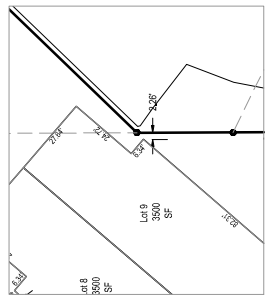
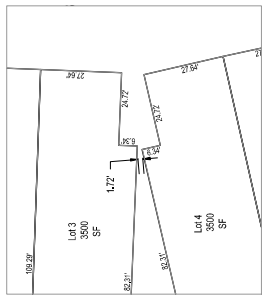
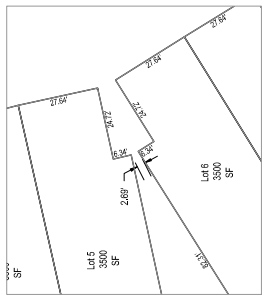
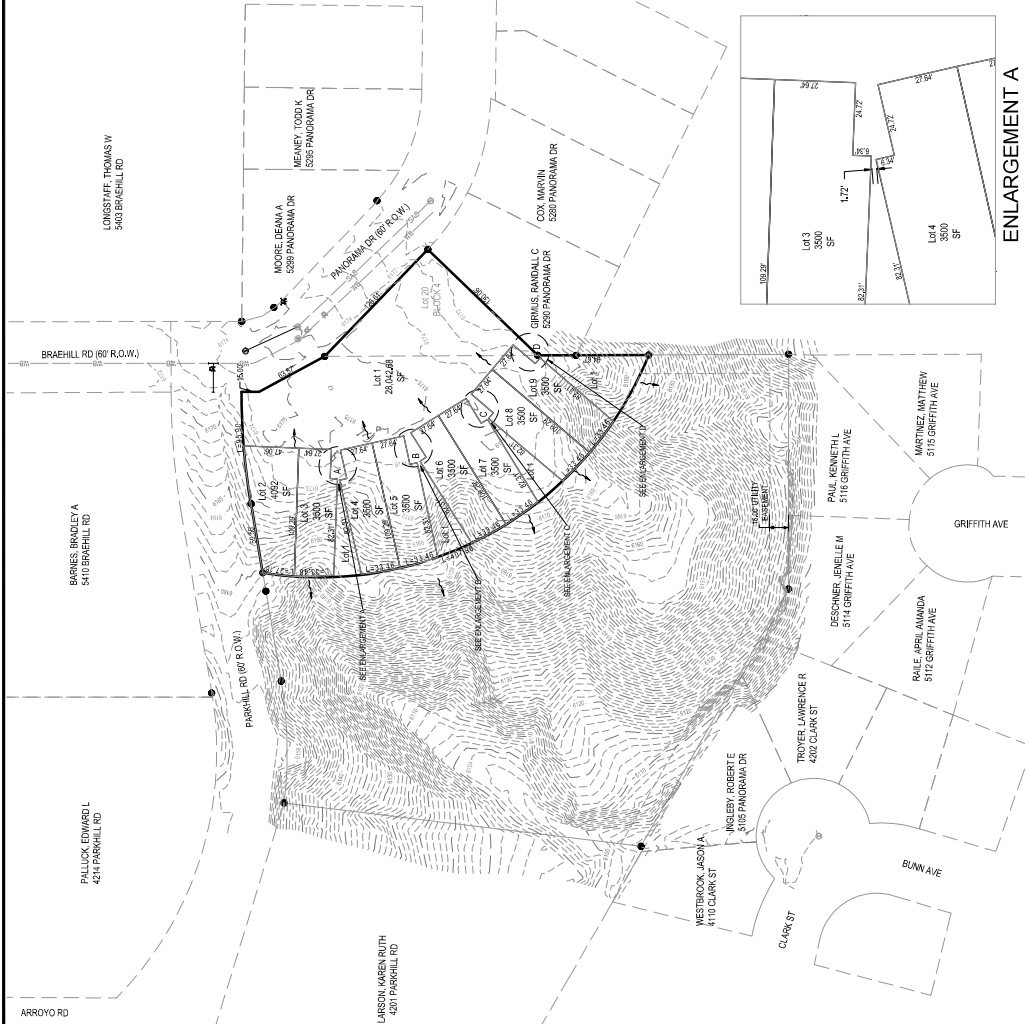
- EXISTING INDEX CONTOUR
- EXISTING INDEX CONTOUR
- EXISTING WATER LINE
- EXISTING SANITARY SEWER LINE
- PROPOSED SANITARY LINE
- PROPOSED DRAINAGE DIRECTION
- EXISTING LOT LINES
- EXISTING LINES
- PLAT BOUNDARY

ZONING

THE CURRENT ZONING IS MR.

NOTES:

- SUBDIVISION CONTAINS 1.34 ACRES ±
- TOTAL LOTS = 9, 6 OF WHICH ARE RESIDENTIAL LOTS
- TOPOGRAPHY IS FROM APT TOPOGRAPHY SEPTEMBER 4, 2020.
- LOT 1 IS OPEN SPACE FOR THE USE OF LOTS 2-9.
- FEMA FLOOD PLAINS NOT APPLICABLE TO THIS PLAT.



**PRELIMINARY PLAT
FOR
THE VIEW**

A REPLAT OF TRACT 1 PARK ESTATES, 4TH FILING
AND LOT 20 BLOCK 4 PARK ESTATES
BEING SITUATED IN THE EAST ONE-HALF OF SECTION 22,
TOWNSHIP 14 NORTH, RANGE 66 WEST
OF THE SIXTH PRINCIPAL MERIDIAN,
LINCOLN COUNTY, NEBRASKA
PREPARED APRIL 2021